

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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THIERNO DIALLO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5 (the names "John Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Traffic Enforcement Officers and New York City Police Officers,

Defendants.

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To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 3, 2023



Ellie A. Silverman, Esq.
SHULMAN & HILL, PLLC.
Attorneys for Plaintiff
THIERNO DIALLO
One State Street Plaza, 15th Floor
New York, New York 10004
212-221-1000

Index No.: _____

Date Purchased: _____

SUMMONS

Plaintiff designates New York County as the place of trial.

The basis of venue is:
Place of Occurrence

TO:

1. **THE CITY OF NEW YORK**, 100 Church Street, New York, New York 10007;
2. **POLICE OFFICER MARYKATE PARKER (SHIELD #12530)**, 1 Police Plaza Path, New York, NY 10038.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
THIERNO DIALLO,

Plaintiff,

-against-

Index No.: _____

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**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5 (the names "John Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Traffic Enforcement Officers and New York City Police Officers,

Defendants.

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Plaintiff **THIERNO DIALLO** by his attorneys **SHULMAN & HILL, PLLC** complaining of Defendants **THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** respectfully alleges, upon information and belief:

PARTIES

1. Plaintiff **THIERNO DIALLO** was, and still is, an individual residing at 240-19 141st Avenue 2nd floor, County of Queens and State of New York.
2. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal corporation duly incorporated and existing under and by virtue of the laws of the State of New York.
3. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant **THE CITY OF NEW YORK** assumes the risks incidental to

the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by NEW YORK CITY POLICE DEPARTMENT.

4. Defendants **POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** were, and still are, at all times relevant herein, duly appointed and acting officers, servants, employees and agents of New York City Police Department a municipal agency of Defendant **THE CITY OF NEW YORK**.
5. Defendants **POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** were, and still are, at all times relevant herein, acting under color of state law in the course and scope of their duties and functions as an officers, agents, servants, and employees of Defendant **THE CITY OF NEW YORK** were acting for, and on behalf of, and with the power and authority vested in them by Defendant **THE CITY OF NEW YORK** and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.
6. On May 3, 2022, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on Plaintiff's behalf on the Comptroller of Defendant **THE CITY OF NEW YORK** and that, thereafter, said Comptroller for Defendant **THE CITY OF NEW YORK** refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.
7. That on or about October 26, 2022, Pursuant to General Municipal Law a 50h hearing was held.
8. Defendants **POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** are sued in their official and individual capacities.

STATEMENT OF FACTS

9. Plaintiff **THIERNO DIALLO** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
10. On or about May 10, 2022, at approximately 5:30 p.m., Plaintiff **THIERNO DIALLO** became a victim of police misconduct, police brutality and vicious assault, while he was returning to his bicycle which was lawfully parked on the street on East 97th Street between 2nd and 3rd Avenue in front of the Islamic Cultural Center of New York located at 1711 3rd Avenue New York, New York 10029.
11. Plaintiff **THIERNO DIALLO** was falsely imprisoned by Defendants as they did not permit him the space to leave his parking space, verbally attacked him and then struck him in the chest and other parts of his body.
12. Plaintiff was never issued a ticket at the time of the incident for any VTL violations or anytime thereafter.
13. Plaintiff was punched, retaliated against, assaulted, violated, yelled at, battered, falsely arrested, maliciously prosecuted and was a victim of malicious and sadistic force.
14. Defendants, **NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5**, acting on behalf of the Defendant **THE CITY OF NEW YORK**, and within the scope of their employment, without any justification and/or provocation and with great force and violence, violently battered, assaulted and laid hold of the Plaintiff, including but not limited to, intentionally, forcefully and fiercely striking Plaintiff multiple times.
15. Upon information and belief, Plaintiff **THIERNO DIALLO** was then shoved into NYPD patrol car and transported to the 23rd precinct despite his pleas for medical attention.
16. Upon information and belief, at no time did Plaintiff **THIERNO DIALLO** resist arrest or disobey the arresting officers' commands.

17. Upon information and belief, upon arrival to the precinct Plaintiff was fingerprinted, photographed and otherwise processed by Defendants and placed into dirty, infested holding cell.
18. Upon information and belief, while in the Precinct, Defendants ignored or otherwise denied Plaintiff's numerous pleas and requests for medical attention for several hours.
19. Upon information and belief, after spending several hours in holding cell, Plaintiff was finally transported to the Metropolitan Hospital where he received treatment for his injuries.
20. Upon information and belief, while in Metropolitan Hospital where Plaintiff **THIERNO DIALLO** was handcuffed to a hospital bed, humiliated, embarrassed and in pain.
21. Upon information and belief, after spending several hours in the hospital, Plaintiff was transported back to the precinct where he spent additional several hours until he was transported to the Central Booking where he was again processed and placed in a dirty holding cell.
22. Upon information and belief, after spending several hours in holding cell in Central Booking Mr. Diallo was brought in front of the Judge where he was finally released from custody.
23. Upon information and belief, due to the subject unlawful arrest and malicious prosecution, Plaintiff **THIERNO DIALLO** had to spend more than two (2) days in custody before he was released on his own recognizance.
24. Upon information and belief, authored a Felony Complaint and an Amended Felony Complaint on May 11 and May 16, respectively, neither of which were on the date of this incident or observed by the signer, Defendant **POLICE OFFICER MARYKATE PARKER (SHIELD #12530.**
25. The Complaints that were submitted included information about a certain Informant 1 and Informant 2, however provided no further information about who actually has personal knowledge of the incident. In fact, it is clear that **POLICE OFFICER MARYKATE PARKER (SHIELD #12530** was not present at the time of the incident.
26. Upon information and belief, even though the charge of Assault in the second degree was dismissed on August 23, 2022, Plaintiff **THIERNO DIALLO** was forced to attend several more

court appearances based on retaliatory and trumped up charges, intended solely to provide a manufactured excuse for the excessive force by the officers and to smear Mr. Diallo's name.

27. It was not until December 5, 2022 when all charges against him were dismissed and they case was sealed.
28. There is no question that this ordeal has greatly affected him mentally, emotionally and psychologically. Additionally, and as a further result of this ordeal, which was instituted and maintained by Defendants, Plaintiff **THIERNO DIALLO** has suffered substantial actual damages including and not limited to, missed time from work, loss of employment opportunities, legal fees and court costs, expenses of defending the prosecution, extreme emotional distress, aggravation, humiliation, loss of enjoyment of life, loss of reputation, sleeplessness, headaches, nightmares, further fear of arrest and other incidental and consequential damages, which were reasonably foreseeable by Defendants.

AS AND FOR A FIRST CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983
BY THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER
(SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS
JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5

29. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
30. By their conduct and actions in arresting, searching, imprisoning, failing to intercede on behalf of Plaintiff and in failing to protect him from the unjustified and unconstitutional treatment he received at the hands of Defendants **THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of Plaintiff's due process clause and constitutional rights as guaranteed under 42 U.S.C. §

1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

31. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical, psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SECOND CAUSE OF ACTION
DERELICTION OF DUTY. DELIBERATE INDIFFERENCE
and FAILURE TO INTERVENE BY DEFENDANTS THE CITY OF NEW YORK,
POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC
ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN
DOE #1-5

32. Plaintiffs repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
33. Defendants **THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** were under a duty of safeguarding the public and ensuring the appropriate execution of Defendant's role.
34. Plaintiff duly relied on Defendants' fulfillment of their New York City Policing duties.
35. Defendants had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence.
36. At the time of the incidents, Defendants **THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** were observing and aware of the wrongful acts against Plaintiff.
37. At the time of the incident, Defendants **THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** neglected to intervene on Plaintiff's behalf in dereliction of their duty to Plaintiff and in deliberate indifference to Plaintiff's well-being.

38. Defendants **THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
39. Defendants **THE CITY OF NEW YORK, NEW YORK CITY OFFICERS, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence by assault, abuse and punishments.
40. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL
HARM AND/OR DISTRESS

41. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
42. Courts have held that continuous and coercive harassment *can* establish an IIED cause of action. *Alexander v. Unification Church of America*, 634 F.2d 673, 678–679 (2d Cir.1980) (filing of harassing lawsuits, constant surveillance, patrolling of plaintiffs' homes); *Green v. Fischbein Olivieri Rozenbolc & Badillo*, 119 A.D.2d 345, 507 N.Y.S.2d 148 (1st Dep't 1986) (baseless eviction proceedings against plaintiff-tenant by landlord, disruption in services, deterioration of living conditions, interference with mails, verbal abuse of plaintiff and his guests). *But see, Gay v. Carlson*, 60 F.3d 83, 89 (2d Cir.1995) (finding plaintiff had not established an IIED claim where “[a]ll that plaintiff alleges that any of the defendants has done is lodge official complaints about plaintiff's conduct or discuss the basis of those complaints with others.”).

43. A timely Notice of Claim was filed with the City of New York.
44. Because many of these “last actionable acts” occurred within the statute of limitations period, the action is not time-barred. *Cf. Leonhard v. United States*, 633 F.2d at 613 (holding that under general principles of New York law, the statute of limitations “ ‘runs from the commission of the last wrongful act.’ ”)(citations omitted).
45. The emotional harm and/or distress continue to present day. Hon. Denise L. Cote reached a similar conclusion on this issue. *Bonner v. Guccione*, 94 Civ. 7735, slip. op. at 7–15, 1996 WL 22355 (S.D.N.Y. January 17, 1996)(holding where last act of an uninterrupted course of actionable conduct falls within statute of limitations, plaintiff permitted to assert IIED claim for entire course of conduct, even those acts beyond the statute of limitations). *Cf. Leonhard v. United States*, 633 F.2d at 613 (holding that under New York law where certain continuous wrongs are alleged, the last wrongful act triggers the statute of limitations).
46. Under the color of state law, Defendants **THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** intentionally caused continuous emotional distress and damage to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of continuous emotional distress emotional injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
47. Upon information and belief, Defendants committed multiple acts against Plaintiff, which invaded his interests and inflicted injuries upon his throughout all stages of investigation, the continuous detention and the hearings, and trials, which cumulatively amounted to intentional infliction of emotional harm and/or distress.
48. Defendants used excessive force against Plaintiff and further compounded their wrongdoings by brutalizing him, falsely arresting him, continuing the malicious prosecution and filing false civil complaints against him.

49. As a result of the multiple acts, including but not limited to the acts briefly outlined, Plaintiff has suffered tremendously, experienced anxiety attacks, required regular therapy and has been emotionally distressed up to the present day.
50. Said police retaliation and false claims as outlined in the facts and below causes of action comprising this complaint has further contributed to Plaintiff's emotional harm and distress.
51. The conduct transcended the bounds of human decency. The conduct amounted to more than the emotional harm that is encompassed within the other claims.
52. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
53. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION
NEGLIGENCE

54. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
55. Upon information and belief, a Notice of Claim was timely filed against the City.
56. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
57. Defendants **THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** negligently caused injuries and otherwise damaged Plaintiff. The acts and conduct of Defendant were the direct and proximate cause of injury to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
58. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FIFTH CAUSE OF ACTION
FALSE ARREST and FALSE IMPRISONMENT

59. Plaintiff **THIERNO DIALLO** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
60. By the actions described above, Defendant **THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** caused Plaintiff to be falsely arrested and falsely imprisoned without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.
61. After being falsely arrested and brutalized and falsely imprisoned and barricaded at the location of the incident, Plaintiff was wrongfully confined for more than two (2) days.
62. Plaintiff continued to be deprived of his liberty with every court appearance he was forced to attend.
63. Defendants herein falsely arrested and prosecuted Plaintiff in order to justify their unlawful actions.
64. A timely Notice of Claim was filed on behalf of Plaintiff.
65. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
66. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SIXTH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
THE COMMON LAW OF THE STATE OF NEW YORK
VIA BATTERY AND ASSAULT AND EXCESSIVE FORCE

67. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

68. A timely Notice of Claim was filed by Plaintiff.
69. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
70. Defendant **THE CITY OF NEW YORK** is vicariously liable to Plaintiff for the individual Defendant's **POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** common tort of battery and assault via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).
71. Defendants committed battery on Plaintiff when he was under their care and custody.
72. Defendants committed a battery on Plaintiff as described above, including but not limited to by brutally assaulting him, placing handcuffs on him, by withholding/denying necessary medical attention, by incarcerating him for more than two (2) days and placing him into a dirty, infested cell where he was held against his will.
73. The above-mentioned abuse was harmful, un-consented, and unjustified and in so doing, Defendant, violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.
74. That on the aforementioned time and place, Defendants committed the tort of assault against Plaintiff by causing him to be in apprehension of imminent, harmful and offensive touching and in so doing, Defendants violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.
75. That by reason of the battery and assault, Plaintiff was harmed physically and emotionally, all while unlawfully and illegally detained, and that Plaintiff was otherwise harmed as a result of the Defendant's actions.
76. The act of denying, proper attention, psychological and medical treatment also amounted to a battery.
77. That by reason of the aforesaid committed by Defendants, Plaintiff suffered and continues to suffer

physical and emotional injury and that he was otherwise damaged.

78. Plaintiff was continuously subjected to excessive and unnecessary and unreasonable acts of physical force, excessive and unreasonable detention, and to unnecessary and unreasonable and excessive terms and conditions of her detention at the hands of Defendants under the color of state law, in violation of her rights as guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 USC § 1983.
79. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SEVENTH CAUSE OF ACTION
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION and TRAINING

80. Plaintiffs repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
81. Defendant **THE CITY OF NEW YORK** negligently hired, screened, retained, supervised and trained Defendants **POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** and its employees.
82. A timely Notice of Claim was filed by Plaintiff.
83. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A EIGHTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL HARM

84. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
85. Defendants **THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN**

DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5 negligently caused emotional distress and damage to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of emotional injury to Plaintiffs and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

86. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A NINTH CAUSE OF ACTION
VIOLATION OF DUE PROCESS & FABRICATION OF EVIDENCE
(Violations of 42 USC § 1983, The Due Process Clause of the United States Constitution, the 14th Amendment, the New York State Constitution)

87. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
88. Defendants, individually and collectively are liable pursuant to 42 U.S.C. § 1983 for abuses against Plaintiff that shock the conscience in violation of the Fourteenth Amendment to the United States Constitution.
89. Defendants, individually and collectively are liable for abuses against Plaintiff that shock the conscience in violation of Article 1, § 5 of the New York State Constitution.
90. Plaintiff was denied the minimal civilized measures of life's necessities.
91. Plaintiff was exposed to poor sanitation, infestation, inadequate nutrition, requests for medical attention, phone calls and use of bathroom facilities, and other unacceptable and inhumane scenarios while imprisoned at the hands of Defendants.
92. Defendants withheld exculpatory evidence from the prosecutors by failing to disclose evidence inconsistent with Plaintiff's guilt, falsely reported facts in the reports, maliciously concealed material evidence, falsely complained of injuries in a Verified Civil Complaint and then submitted an Amended Complaint days later and other violations.

93. Defendants falsely charged Plaintiff with charges meant to excuse Defendants' violations and were not based in truth or reality but rather out of retaliation and fear of being disciplined for their actions.
94. Defendants falsely prosecuted Plaintiff, falsely reported facts intentionally to mislead the criminal proceedings and fabricated evidence. ("Because evidence fabrication serves to both improperly charge and/or arrest a plaintiff as well as unfairly try him, the *Coffey* violation, in its essence, involves aspects of both the Fourth Amendment and procedural due process."); *Myers v. Cnty. of Nassau*, 825 F.Supp.2d 359, 367 (E.D.N.Y. 2011) (noting that when a police officer turned over fabricated evidence to the prosecutor, such conduct can be redressed, not as a *Brady* violation, but as a deprivation of liberty on the basis of false and fabricated evidence).
95. Defendants, individually and collectively are liable for abuses against Plaintiff that shock the conscience in violation of New York law, rules and regulations.
96. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A TENTH CAUSE OF ACTION
MALICIOUS ABUSE OF PROCESS

97. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
98. The defendants issued criminal legal process against Plaintiff based on an improper or malicious motive.
99. The defendants acted with improper purpose in arresting and continuing to prosecute Mr. Diallo in order to conceal their own misconduct, and in connection with his false arrest and malicious prosecution, in order to escape disciplinary charges and potential loss of employment. Courts have found that a desire to protect one's employment can constitute a collateral purpose. *See, e.g., Hoyos*, 999 F. Supp. 2d at 391; *Douglas*, 595 F. Supp. 2d at 344 (S.D.N.Y. 2009) ("Fabricating assault charges to save one's job could be abuse of process, however, because 'safeguarding one's own

employment lies outside the legitimate goal of criminal process.”) (*quoting Hernandez v. Wells*, No. 01 Civ. 4376, 2003 WL 22771982, at *9 (S.D.N.Y. Nov. 24, 2003)).

100. The defendants have maintained an active role in the prosecution by having the plaintiff arraigned, filling out arrest reports and corroborating documents and signing the complaint.
101. As a direct and proximate result of this unlawful conduct, Plaintiff sustained emotional and psychological damages, stress, anxiety, court costs, legal fees, humiliation and embarrassment and other damages alleged herein.

AS AND FOR A ELEVENTH CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983
BY THE CITY OF NEW YORK
CLAIM FOR *MONELL* LIABILITY

102. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
103. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendants **POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
104. At all times material to their complaint, Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendants **POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** had in effect and/or *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise and discipline employees and police officers, and of failing to inform the individual Defendants’ supervisors of the need to train, screen, supervise and discipline said Defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

105. Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendants **POLICE OFFICER MARYKATE PARKER (SHIELD #12530), POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** being aware that such lack of training, screening, supervision, and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant **THE CITY OF NEW YORK** being aware that the persistent and substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. These are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff and which are officially tolerated by Defendant **THE CITY OF NEW YORK**. Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.
106. The existence of the above-described *de facto* unlawful policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officers and Police Officers and defendant **THE CITY OF NEW YORK**, including but not limited to the NYPD.
107. At the time of the aforementioned constitutional violations, **THE CITY OF NEW YORK** and NYPD were and had been on notice of such unconstitutional conduct, customs, and de facto policies, such that the failure of **THE CITY OF NEW YORK's** NYPD to take appropriate remedial action amounted to deliberate indifference to the constitutional rights of persons with whom the correction officers come in contact. In light of the extensive pattern of well-settled, pervasive customs and policies causing constitutional violations, documented in part *infra*, the need

for more effective supervision and other remedial measures was patently obvious, but **THE CITY OF NEW YORK** and NYPD made no meaningful attempt to prevent future constitutional violations.

108. Defendant **THE CITY OF NEW YORK** knew or should have known that the acts alleged herein would deprive Plaintiff of his rights under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.
109. Defendant **THE CITY OF NEW YORK** is directly liable and responsible for the acts of Defendants, as it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulations of the City and NYPD, and to require compliance with the Constitution and laws of the United States.
110. Despite knowledge of such unlawful de facto policies, practices, and/or customs, these supervisory and policy-making officers and officials of the NYPD and **THE CITY OF NEW YORK**, including the NYPD, have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead approve and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effects of said policies, practices and/or customs or the constitutional rights of persons in the City of New York.
111. The aforementioned Defendant's **THE CITY OF NEW YORK** policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned City policies, practices and/or customs, Defendants felt empowered to arrest Plaintiff without probable cause and then kept him in unsanitary and inhuman conditions.
112. Pursuant to the aforementioned **THE CITY OF NEW YORK** policies, practices and/or

customs, the employees, representatives and/or agents failed to intervene in or report Defendants' violations of Plaintiff's rights.

113. Plaintiff's injuries were a direct and proximate result of the defendant **THE CITY OF NEW YORK**'s wrongful de facto policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the defendant **THE CITY OF NEW YORK** to properly supervise, train and discipline their employees, agents and representatives of NYPD.
114. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical, psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.
115. In this case, there was: Police withholding evidence and/or misrepresenting or falsifying evidence; overall inadequate police work and inadequate prosecutorial work-up of the case; and permitting and/or enforcing false arrest and placing Plaintiff in unsafe and unconstitutional conditions of confinement.
116. The acts complained of were carried out by the aforementioned defendants in their capacities as officers pursuant to customs, policies, usages, practices, procedures and rules of the City, NYPD, all under the supervision of higher-ranking representatives, employees and/or agents of the NYPD.
117. The aforementioned customs, practices, procedures and rules of the City and NYPD include, but are not limited to: 1) arresting persons known to be innocent in order to meet "productivity goals"; 2) falsely swearing out criminal complaints and/or lying and committing perjury during sworn testimony to protect other officers and meet productivity goals; 3) failing to supervise, train, instruct and discipline police officers thereby encouraging their misconduct and exhibiting deliberate indifference towards the constitutional rights of persons within the officers' jurisdiction; 4) discouraging police officers from reporting the corrupt or unlawful acts of other officers; 5) retaliating against officers who report police misconduct; and 6) failing to intervene to prevent the above-mentioned practices when they reasonably could have been prevented with proper supervision.

118. At the time of the aforementioned constitutional violations, **THE CITY OF NEW YORK** and NYPD were and had been on notice of such unconstitutional conduct, customs, and de facto policies, such that the failure of City and NYPD to take appropriate remedial action amounted to deliberate indifference to the constitutional rights of persons with whom the police come in contact. In light of the extensive pattern of well-settled, pervasive customs and policies causing constitutional violations, documented in part infra, the need for more effective supervision and other remedial measures was patently obvious, but **THE CITY OF NEW YORK** and NYPD made no meaningful attempt to prevent future constitutional violations.
119. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented by the following civil rights actions and parallel prosecutions of police officers:
- a) Colon v. City of New York, 9-CV-0008 (JBW)(E.D.N.Y) (in an Order dated November 29, 2009 denying the City's motion to dismiss on Iqbal/Twombly grounds, wherein the police officers at issue were and prosecuted for falsifying evidence, the Honorable Jack B. Weinstein wrote:
 - b) 'Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration—through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department—there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.'
 - c) McMillan v. City of New York, 04-cv-3990 (FB)(RML) (E.D.N.Y.)(officers fabricated evidence against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion);
 - d) Richardson v. City of New York, 02-CV-3651 (JG)(CLP) (E.D.N.Y.)(officers fabricated evidence including knowingly false sworn complaints, against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of

suspicion);

120. The existence of the aforesaid unconstitutional customs and practices, specifically with regard to the practice or custom of officers lying under oath, falsely swearing out criminal complaints or otherwise falsifying or fabricating evidence, are further evidenced, inter alia, by the following:

- e) a) Morgan Cloud, *The Dirty Little Secret*, 43 EMORY L.J. 1311, 1311-12 (1994) (“Judges, prosecutors, defense lawyers, and repeat offenders all know that police officers lie under oath.”); Jerome H. Skolnick, *Deception by Police*, CRIM. JUST. ETHICS, Summer/Fall 1982, at 40, 42 (concluding that police “systematic[ally]” perjure themselves to achieve convictions); ALAN M. DERSHOWITZ, *THE ABUSE EXCUSE* 233 (Hachette Book Group 1994) (suggesting that “recent disclosures about rampant police perjury cannot possibly come as any surprise” to those who have practiced criminal law in state or federal courts); ALAN M. DERSHOWITZ, *THE BEST DEFENSE* xxi- xxii (Random House 1983) (“Almost all police lie about whether they violated the Constitution in order to convict guilty defendants.”); Deborah Young, *Unnecessary Evil: Police Lying in Interrogations*, 28 CONN. L. REV. 425, 427 (1996) (asserting that “the reported cases of police lying represent only a fraction of the actual cases in which police lying occurred”); David Kocieniewski, *Perjury Dividend-A Special Report*, N.Y. TIMES, Jan. 5, 1997, at A1 (noting that according to one New York police officer, “lying under oath was standard procedure”); *Lie Detectors Could Curb Police Perjury*, USA TODAY, Aug. 1, 1996, (Magazine), at 13 (“[M]any experienced trial lawyers have said they believe police officers frequently lie on the stand.”); Joseph D. McNamara, *Has the Drug War created an Officer Liars' Club?*, L.A. TIMES, Feb. 11, 1996, at M1 (noting recent perjury scandals have surfaced in police departments in Los Angeles, Boston, New Orleans, San Francisco, Denver, New York, and other large cities; and stating “[H]undreds of thousands of law-enforcement officers commit felony perjury every year testifying about drug arrests.”).
- f) The Mollen Commission concluded that police perjury and falsification of official records is probably the most common form of police corruption facing the criminal justice system. It concluded:
- g) Regardless of the motives behind police falsifications, what is particularly troublesome about this practice is that it is widely tolerated by corrupt and honest officers alike, as well as their superiors. Corrupt and honest officers told us that their supervisors knew or should have known about falsified versions of searches and arrests and never questioned them.¹ {...} What breeds this tolerance is deep-rooted perception among many officers of all ranks within the Department that there is nothing really wrong with compromising the facts to fight crime in the real world. Simply put, despite devastating consequences of police falsifications, there is a persistent belief among officers that it is necessary and justified, even if it is unlawful. As one dedicated officer put it, police officers often view falsification as, to use his words, “doing God’s work” – doing whatever it takes to get the suspected criminal off the streets. This is so entrenched, especially in high-crime precincts, that when investigators confronted one recently arrested officer with evidence of perjury, he asked in disbelief, “What’s wrong with that? They’re guilty.” *See*, Mollen Commission Report pgs 36-41.

121. The existence of the aforesaid unconstitutional customs and policies, specifically with regard to "productivity goals," may be further inferred from the following: Deputy Commissioner Paul J. Browne has repeatedly admitted that NYPD commanders are permitted to set "productivity goals."¹
122. The existence of the aforesaid unconstitutional customs and practices, specifically with regard to the failure to supervise, train, instruct, and discipline police officers, encouraging their misconduct, and exhibiting deliberate indifference towards the constitutional rights of persons with whom officers come into contact are further evidenced, inter alia, by the following:
- i. a) In response to the Honorable Judge Weinstein's ruling of November 25, 2009 in Colon v. City of New York, 09-CV-00008 (E.D.N.Y.), in which he noticed a "widespread... custom or policy by the city approving illegal conduct" such as lying under oath and false swearing, NYPD Commissioner Raymond Kelly acknowledged, "When it happens, it's not for personal gain. It's more for convenience."
 - ii. b) Regarding Defendant City's tacit condonement and failure to supervise, discipline or provide remedial training when officers engage in excessive force, the Civilian Complaint Review Board is a City agency, allegedly independent of the NYPD, that is responsible for investigating and issuing findings on complaints of police abuse and misconduct. When it does, however, Commissioner Kelly controls whether the NYPD pursues the matter and he alone has the authority to impose discipline on the subject officer(s). Since 2005, during Kelly's tenure, only one quarter of officers whom the CCRB found engaged in misconduct received punishment more severe than verbal "instructions." Moreover, the number of CCRB-substantiated cases that the NYPD has simply dropped (i.e., closed without action or discipline) has spiked from less than 4% each year between 2002 and 2006, to 35% in 2007, and approximately 30% in 2008. Alarming, the NYPD has refused to prosecute 40% of the cases sent to it by the CCRB in 2009. As a result, the percentage of cases where the CCRB found misconduct but where the subject officers were given only verbal instructions or the matter was simply dropped by the NYPD rose to 66% in 2007. Substantiated complaints of excessive force against civilians accounted for more than 10% of the cases that the NYPD dropped in 2007 and account for more than 25% of cases dropped in 2008.²
123. The existence of the above-described de facto unlawful policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officers and officials of the NYPD and defendant **THE CITY OF NEW YORK**, including

¹ Jim Hoffer NYPD Officer claims pressure to make arrests WABC-TV Eyewitness News, March 22 2010, available at <http://abclocal.go.com/Wabc/story?section=news/investigators&id=73053S6> ("Police Officers like others who receive compensation are provided productivity goals and they are expected to work").

² Daily News, Editorial: City Leaders Must Get Serious About Policing the Police, August 20, 2008.

without limitation, the Police Commissioner.

124. All of the foregoing acts by defendants deprived Plaintiff of her federally protected rights, including, but limited to, the constitutional rights enumerated herein.
125. Defendant **THE CITY OF NEW YORK** knew or should have known that the acts alleged herein would deprive Plaintiff of his rights under the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.
126. Defendant **THE CITY OF NEW YORK** is directly liable and responsible for the acts of Defendants, as it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulations of the City and NYPD and to require compliance with the Constitution and laws of the United States.
127. Despite knowledge of such unlawful de facto policies, practices, and/or customs, these supervisory and policy-making officers and officials of the NYPD and **THE CITY OF NEW YORK**, including the Commissioner, have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead approve and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effects of said policies, practices and/or customs or the constitutional rights of persons in the City of New York.
128. The aforementioned Defendant's **THE CITY OF NEW YORK** policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned City policies, practices and/or customs, Defendants felt empowered to arrest Plaintiff, medicate and confine him thus, making blatant violations of Plaintiff's constitutional rights.

129. Pursuant to the aforementioned **THE CITY OF NEW YORK** policies, practices and/or customs, the employees, representatives and/or agents failed to intervene in or report Defendants' violations of Plaintiff's rights.
130. Plaintiff's injuries were a direct and proximate result of the defendant **THE CITY OF NEW YORK**'s wrongful de facto policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the defendant **THE CITY OF NEW YORK** to properly supervise, train and discipline their agents, employees, or representatives.
131. There is a clear causal connection between the actions of **THE CITY OF NEW YORK** and the constitutional violations in this case. Here, **THE CITY OF NEW YORK** caused and is implicated in the constitutional violations and thus, should be held liable for the unconstitutional actions taken by the police officers.
132. Here, it is clear that **THE CITY OF NEW YORK** took action by their hiring and retention, which is sufficient to expose them to liability. *Amnesty America v. Town of West Hartford*, 361 F3d 113, 125 (2d Cir. 2004).
133. Upon information and belief, **THE CITY OF NEW YORK** was on notice that these policies were being unconstitutionally applied by inadequately trained medical staff and consciously has chosen not to train them or hire staff more adequate. *City of Canton, Ohio v. Harris*, 489 US 378 at 387.
134. By being aware of the medical staff's unconstitutional actions and consciously ignoring them, this in turn can mean that **THE CITY OF NEW YORK** ratified the defendants' actions. *See, Sorlucco v. New York City Police Dept.*, 971 F2d 864, 870-871 (2d Cir. 1992) (municipality lies where the subordinate's misconduct is "so manifest, as to imply the constructive acquiescence of senior policymaking officials").
135. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A TWELFTH CAUSE OF ACTION
MALICIOUS PROSECUTION UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
AND
NEW YORK STATE CLAIM OF MALICIOUS PROSECUTION

136. Plaintiff **THIERNO DIALLO** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
137. Defendants' actions with regard to the institution and maintenance of the criminal prosecution were committed wantonly and with a reckless disregard for whether a reasonable ground of suspicion existed, supported by the circumstances, which would lead a reasonably prudent person to believe that Plaintiff had committed a crime.
138. By the actions described above, Defendants **THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** initiated a prosecution against Plaintiff **THIERNO DIALLO**.
139. By the actions described above, Defendants **THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** caused Plaintiff to be maliciously prosecuted without any probable cause, without reasonable suspicion, without any proper claims, without any right or authority to do so, illegally and with malice.
140. Defendants **THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** arrested and issued legal process in order to obtain collateral objectives outside the legitimate ends of the legal process and intimidating Plaintiff for their personal interest and further to prevent Plaintiff from disclosing the aforementioned evidence of their misconduct.
141. Defendants acted with intent to do harm to Plaintiff without excuse or justification.

142. The legal process was terminated in favor of Plaintiff.
143. A timely Notice of Claim was filed with the City of New York as malicious prosecution was claimed in the Notice of Claim.
144. By the actions described above, Defendants **THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5** lacked probable cause to believe the proceeding could succeed.
145. In fact, no probable cause existed to support a conviction and thus, actual malice by Defendants may additionally be inferred by the lack thereof.
146. The charges were ultimately terminated in favor of Plaintiff **THIERNO DIALLO**.
147. As a result of the foregoing, Plaintiff **THIERNO DIALLO** was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, Plaintiff **THIERNO DIALLO** demands judgment against Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
sanctions
- d. Such other and further relief as this court may deem just and proper, including injunctive and declaratory relief.

Dated: New York, New York
August 3, 2023

Yours, etc.

A handwritten signature in black ink, appearing to read "Ellie Silverman", written over a horizontal line.

Ellie A. Silverman, Esq.
SHULMAN & HILL, PLLC.
Attorneys for Plaintiff
THIERNO DIALLO
One State Street Plaza, 15th Floor
New York, New York 10004
212-221-1000

ATTORNEY'S VERIFICATION

ELLIE A. SILVERMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am Special Counsel to **SHULMAN & HILL, PLLC**, attorneys of record for Plaintiff **THIERNO DIALLO**. I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: New York, New York
August 3, 2023



Ellie A. Silverman, Esq.

Index No.: _____/2023

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

THIERNO DIALLO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER MARYKATE PARKER (SHIELD #12530), NEW YORK CITY TRAFFIC ENFORCEMENT OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE/JOHN DOE #1-5 (the names "John Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Traffic Enforcement Officers and New York City Police Officers,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

Ellie A. Silverman, Esq.
SHULMAN & HILL, PLLC.
Attorneys for Plaintiff
THIERNO DIALLO
One State Street Plaza, 15th Floor
New York, New York 10004
212-221-1000

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: August 3, 2023



Ellie A. Silverman, Esq.

TO:

1. **THE CITY OF NEW YORK**, 100 Church Street, New York, New York 10007;
2. **POLICE OFFICER MARYKATE PARKER (SHIELD #12530)**, 1 Police Plaza Path, New York, NY 10038.